

STATE OF TEXAS {
COUNTY OF TRAVIS {

* MAX ORTA, et al. *
* vs. *
* Board of Trustees of *
* Hondo Independent School *
* District, Medina, County *

STATEMENT OF CASE

This is an action complaining of segregation of pupils of Mexican or other Latin American descent in the elementary first grades and eighth-grades of the public schools of the Hondo Independent School District, Medina County, Texas. Patrons of that school district, Mr. Max Orta and others, represented by counsel, filed their petition complaining of illegal segregation based on the following allegations. First, the maintenance and operation of the Hondo District school known as the "West Ward School" on a separate campus for the purpose of housing and educating first-grade pupils of Mexican descent only constitutes unlawful segregation. Second, the practice and custom of the Hondo district in segregating said children in the eighth grade by a grouping or classification system providing for A and B sections and by assigning so-called homogenous groups to each of said sections constitutes arbitrary and illegal segregation of pupils of Mexican descent.

The first allegation was particularized and expanded at the hearing held in my office to complain further (a) that standardized tests or examinations are not being equally given and applied to all first-grade pupils to demonstrate and determine whether each of them does not possess sufficient familiarity with the English language to understand substantially classroom instruction in first-grade subject matters; (b) that first-grade pupils of Mexican descent are being retained and thereby segregated a second year in the first grade class operated on the separate campus, when it is determined they are not eligible for promotion to grade two.

Pupils of the elementary grades, one through eight inclusive, are housed in two schools of the Hondo District. One school, known as Central Elementary School and located in the center of the district, consists of two buildings, a main building and a gymnasium, both of which are used for classroom purposes. The Central Elementary school and grounds is located about 300 yards south of the High school campus. It has same playground facilities. The cafeteria facilities of the high school are made available to elementary pupils. Neither of the elementary schools operates a cafeteria. In the 1952-1953 school year about 650 pupils were enrolled in Central Elementary, about 50 of which were first-grade pupils assigned in two classrooms. Except for possibly one pupil of Mexican descent, all other first grade children in Central Elementary were of Anglo-American descent.

The other elementary school, West Ward School, is a single building of four classrooms. Its construction is more recent and better than those at Central Elementary. It stands about a mile and a quarter west and northwest of Central Elementary. It has no playground facilities and is too distant for practicable use of the high school cafeteria. In the 1952-53 year, West Ward housed about 120 first-grade pupils, all of which were of Mexican descent.

Evidence offered at the hearing established that by practice and custom of the district, all first-grade children of Mexican descent in their initial scholastic year and those retained for a second year in the first grade were enrolled in this West Ward School. Some testimony was offered to establish and tended to show that most of the parents of these children preferred and elected to enroll their children in West Ward, since that school is convenient, located within the area of predominant Latin American population; further that several other parents, among whom are numbered the petitioners, would and did enroll their children at West Ward rather than experience any embarrassment of having their children refused admittance to the first grade of the Central Elementary, their children being deficient in ability to understand simple instructions given in the English language.

It was further developed at the hearing before me that all the Anglo-American first-grade pupils were by custom and practice enrolled in the first-grades of the Central Elementary; that no scientific or standardized tests were given them to determine their familiarity with the English language. Further, no such standardized tests, oral or otherwise, were given the pupils enrolled for the first-grade in the West Ward School. Whenever, however, a pupil of Mexican descent appeared and applied for enrollment in the first-grade of the Central Elementary, he was given an oral test to determine his ability to understand and follow simple instructions spoken in English; if his response proved unsatisfactory, he was referred to the West Ward School.

Some, but sparse, evidence was developed at the hearing concerning the district's practice in the 1952-1953 year in the creation of class sections designated A, B, and C in the Central Elementary grades two through eight inclusive. The evidence reflected that in the early months, September, 1952, to the first week in January, 1953, pupils in each of these grades were separated or allocated into class sections A, B, or C on a strictly alphabetical grouping or classification basis. This grouping, necessary to equalize the teacher-load, was impartial in its application, 1/3 of the total pupils in grade two, three, et cetera, whose last names began with "a" to possibly "g" were allocated to Section A, 1/3 beginning with "h" to "p" to Section B and the remaining to Section C. No evidence was offered to show that this alphabetical grouping was intended or did result in unlawful segregation of pupils of different descent.

About January, 1953, the district substituted in lieu of its alphabetical sectionizing or grouping a plan whereby pupils in each of the grades, two through eight, were sectionalized into sections A, B, and C, based on achievement tests or examination equally given to students of each grade. Testimony was offered by the school district that this change in section groupings was adopted to readjust teacher-loads which at that time had been rendered unfair and unequal due to an influx of pupils of Mexican Descent enrolling late in the Hondo schools upon their return from migratory crop labor with their parents. No evidence of a sufficient nature was offered to establish that the sectionalizing, grouping or classification of students based on achievement tests equally given to all by the Hondo district was designed, devised or actually operated in grades two through eight to perpetuate the segregation of pupils of Mexican descent having English language deficiency, which the law permits as to such pupils in their initial scholastic year, suffice it to say that the record of the hearing on this case does not herein warrant a decision that the 1952-1953 grouping or classification policies of the Hondo district hereinabove considered were arbitrary or illegal, or instituted or adopted by that district for the purpose of segregating pupils of Mexican descent in class sections of grades two through eight, inclusive.

That law is clear that a public school district may not lawfully segregate Latin American pupils as such. No lawful classification or segregation may be based solely upon Latin American or Mexican descent. Independent School District vs. Salvatierra, 33 S.W. (2) 790, 284 U.S. 580 (cert. den.).

Based on certain language deficiencies, separate classes may be maintained for any public school pupils in their initial scholastic year, first grade, who, after examinations equally applied, come within such classifications. This is the holding of United States District Court, decided June 15, 1948, in Minerva Delgado v. Eastrop Independent School District. We quote from that decision in part as follows:

The defendants (naming school districts and parties involved) are hereby permanently restrained and enjoined from segregating pupils of Mexican or other Latin American descent in separate schools or classes.....and from denying said pupils use of the same facilities and services enjoyed by other children of the same ages or grades; provided, however, that this injunction shall not prevent said defendant school districts..... from providing for and maintaining, separate classes on the same campus in the first grade only, and solely for instructional purposes, for pupils in their initial scholastic year who, at the beginning of their initial scholastic year in the first grade, or who have not accumulated

attendance substantially equivalent to a scholastic year,
clearly demonstrate, as a result of scientific and standard-
ized tests, equally given and applied to all pupils, that
they do not possess a sufficient familiarity with the English
language to understand substantially classroom instruction
in first-grade subject matters.

In that decision the then State Superintendent of Public Instruction, which office is now the State Commissioner of Education, was permanently restrained and enjoined from in any manner directly or indirectly, participating in the custom, usage or practice of segregating pupils of Mexican or other Latin American descent in separate schools or classes not in conformity with the holding of that court.

In the light of the Court's construction of segregation law in that case, it is my decision that the operation and maintenance by the Hondo Independent School District in the year 1952-1953 of separate classes for first-grade pupils in the West Ward School constituted unlawful segregation, in violation of rules concerning permissible segregation announced in the Delgado decision for the reasons: (1) the separate classes for such classified pupils attending those classes were not located on the same campus. Central Elementary, where other first-grade pupils were taught and applied to all the first-grade pupils of that school district.

On September 5, 1953, counsel for the Hondo district advised by letter this Agency that beginning September 8, 1953, all first-grade students of the Hondo district would be provided for and educated in the Central Elementary School, that first-grade children classified and segregated for their language difficulties would be housed in the same buildings as other first-grade pupils. This arrangement meets the objection set out in reason (1) of this decision. However, it does not correct nor cure the segregation violation set out in reason numbered (2). Accordingly, it is my further decision that unless and until the segregated first-year class of standardized test, equally given and applied to all its first-grade pupils, the present segregated first-year classes like those conducted in its 1952-1953 school year are created and exist at variance with and in violation of permissible segregation as construed in the Delgado decision.

Furthermore, the Delgado decision holds that there may be lawful segregation of first-grade pupils, segregated in compliance with the provisions therein defined, who are (1) in their initial scholastic year or (2) who have not accumulated attendance substantially equivalent to a scholastic year. That holding restricts permissive segregation of first-grade pupils to pupils determined by the local school district to fall within either of those two designations. Thus, it would follow that such children who are retained in the first-grade for a second year, and who had accumulated attendance in their first year substantially equivalent to a scholastic year, may not lawfully be retained in a segregated first-year class for a second year. If such a child is retained for a second year in a first-grade class, he would have to be enrolled the second year in a non-segregated first-year class. The responsibility and duty of determining what retain first-grade pupils fall in such retained first-year pupils are now segregated for a second year in a segregation ruling of the Delgado decision.

The Hondo Independent School District, its official board of trustee and superintendent, is hereby ordered to cease and desist from engaging in the practice of segregating its pupils in any manner considered in this decision to be unlawful, and to re-establish and determine the pupil membership of any segregated classes for first-year pupil, it may deem necessary to operate and maintain, in full accordance with the provisions for permissive segregation as prescribed in the Delgado decision.

Given under my hand and seal of office, this the ____ day of September, 1953.

J. W. Edgar
Commissioner of Education